

STATE OF NEW YORK

6012--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 25, 2025

Introduced by M. of A. KELLES, GIBBS, LUNSFORD, SANTABARBARA, DeSTEFANO, SLATER, BRABENEC, DAVILA, RA, BRONSON, LEVENBERG -- read once and referred to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to establishing the safe water infrastructure action program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The environmental conservation law is amended by adding a new article 78 to read as follows:

ARTICLE 78

SAFE WATER AND INFRASTRUCTURE ACTION PROGRAM

Section 78-0101. Safe water and infrastructure action program.

§ 78-0101. Safe water and infrastructure action program.

1. Notwithstanding any other provisions of this chapter or any other law and subject to an appropriation made therefor and in accordance with the provisions of this section and with the rules and regulations promulgated by the commissioner in connection therewith, on and after the first day of April, two thousand twenty-six, a consolidated local infrastructure program is hereby established for the purpose of making payments toward the replacement and rehabilitation of existing local municipally-owned and funded drinking water, storm water and sanitary sewer systems. For purposes of this section, such program shall apply to any drinking water system, storm water system or sanitary sewer system within the state that is under the maintenance and/or operational jurisdiction of a county, city, town, village or public authority; provided, however, that such system shall not be under the maintenance and/or operational jurisdiction of a private entity; and provided further, however, that no more than ten percent of the moneys paid under the program shall be paid toward replacement and rehabilitation of drinking

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD05392-03-5

1 water, storm water, and sanitary sewer systems under the maintenance
2 and/or operational jurisdiction of any one county, city, town, village,
3 or public authority. The commissioner, in conjunction with the environ-
4 mental facilities corporation, shall promulgate all necessary rules and
5 regulations to carry out the program so that an equitable distribution
6 of aid shall be made for the general operation and/or general mainte-
7 nance of any such existing drinking water system, storm water system or
8 sanitary sewer system. Existing water infrastructure includes all the
9 man-made and natural features that move and treat water in terms of
10 drinking water, waste water, and storm water. Monies from this fund may
11 be used for maintenance and repairs of existing water infrastructure as
12 well as new water infrastructure expansion, but only into already devel-
13 oped areas so as not to support sprawl and development of natural areas.
14 Already developed areas are those that are zoned/defined by munici-
15 palities as of January first, two thousand twenty-five as commercial and
16 residential use.

17 2. On or before the twenty-fifth day of April, June, September and
18 November of each state fiscal year commencing with the state fiscal year
19 beginning on April first, two thousand twenty-seven, there shall be
20 distributed and paid to counties, cities, towns, villages and public
21 authorities an amount equal to the moneys appropriated for the purposes
22 of this section divided by the number of payment dates in that state
23 fiscal year. Such amounts shall be distributed and paid pursuant to
24 subdivision three of this section.

25 3. Amounts shall be distributed for local drinking water, storm water
26 and sanitary sewer systems based upon a funding formula that the depart-
27 ment and the department of health shall create taking into consideration
28 factors including but not limited to: the system's length and width of
29 pipes; other physical assets maintained by the system, including treat-
30 ment facilities and pumping stations; the age of the system's infras-
31 tructure; and relevant socioeconomic factors, including the presence of
32 disadvantaged communities within a system's service area, to achieve an
33 equitable distribution of aid.

34 4. Monies made available may be used to match other state and federal
35 funds made available for such projects. The remainder of the apportion-
36 ment may be used for any existing drinking water, storm water or sewer
37 system purchases, including but not limited to, the acquisition of mate-
38 rials for the replacement or rehabilitation.

39 5. For any city, town, village or public authority which proposes
40 infrastructure consolidation under this section or merges with another
41 municipality, the funds appropriated under this section may fund costs
42 associated with such consolidation.

43 6. For each fiscal year, starting in two thousand twenty-seven, funds
44 are to be made available to the local infrastructure assistance account
45 of the general fund, and distributed from that account.

46 7. At the end of each fiscal year, each county, city, town, village
47 and public authority that receives funding pursuant to this section
48 shall submit an annual report to the department detailing how such money
49 was used. The department shall compile all reports and submit them to
50 the comptroller for their review. Once a report is finalized, it shall
51 be made publicly available on the department's website. The department
52 and the comptroller shall reserve the right to conduct sight visits to
53 ensure the money is being used accurately.

54 § 2. This act shall take effect on the thirtieth day after it shall
55 have become a law.